

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202233

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: CHRISTOPHER MARKS

vs.

DEFENDANT: DENALI WATER
SOLUTIONS, LLC

NATURE OF PROCEEDINGS: MOTION – COMPEL - DISCOVERY FACILITATOR
PROGRAM

RULING

Plaintiff's Amended Motion to Compel Further Written Responses to Request for Production of Documents and to Compel Production of Documents is GRANTED.

The parties appeared in court on August 21, 2026, on Defendant's ex parte application for an order shortening time, which was denied. The parties advised the court that they were in the process of meeting and conferring on the outstanding discovery issues given that the case is set for trial on January 20, 2027. The court did not receive an update declaration and proceeds with this order understanding that the discovery dispute remains unresolved.

Plaintiff's Motion to Compel Plaintiff Christopher Marks' Compliance with Responses to Defendant Denali Water Solutions, LLC's Requests for Production of Documents (Set One) is GRANTED. Plaintiff's Requests for Production of Documents Set No. One seeks to compel responses and production of documents responsive to Requests No. 1-36, 44-72, 74-80 and 82-1511, Requests omitted from the motion are Nos. 37-43, 73 and 81. The motions to compel are GRANTED

Meet and confer efforts began in January 2026, with Defendant agreeing to supplement responses in February. Defendant served initial objections to all Plaintiff's Requests for Production of Documents and served no documents with its objections on December 5, 2025. After the parties met and conferred, Defendant served supplemental written responses to the Request for Production of Documents on February 16, 2026. The plaintiff found the responses to be inadequate and continued meet and confer efforts through April 2026, before bringing the motions.

The dispute did not resolve with the assistance of the discovery facilitator, who was appointed on July 14, 2026.

Code of Civ. Proc. §2031.220 provides that a party responding to a documents request must serve a statement that the responding party will comply with the particular demand and that all documents or things in the demanded category that are in the possession, custody, or control will be made and will be included in the production. Defendant advised the Plaintiff, in response to requests (1-36, 44-72, 74-80 and 82-151), that it would "produce relevant non-privileged responsive documents on a "rolling basis." This response is inadequate. Defendant is ordered to respond within 10 days of entry of this order, as to whether it is in possession of responsive documents for each request.

CCP §2031.280(a) requires identification of documents or category of documents that are produced in response to a demand for inspection, and those documents should identify the request for which they are responsive. Defendant shall provide an index to link the requests with the documents produced in August 2025.

CCP §2031.240(c)(1) provides that if an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log. Defendant has incorporated its privilege objections in the preface into its supplemental written responses to Requests 7-15, 17-18, 24-27, 46-50, 56-71, 74-80, 82 and 86-93. Defendant shall provide further written responses to the Requests and identify the specific ground for objection for any responsive document Defendant is withholding. The Defendant shall provide sufficient factual information regarding any privilege objection and provide a privilege log.

Supplemental responses to document requests 51 and 52 regarding vendors Roger Sissom and Patrick 8, and others who provided consultation services for documents that were "marked up" or "skimmed". The parties met and confirmed on this issue on March 2026, to clear the vagueness of these terms for the Defendant. Plaintiff complains that the issue has not been resolved even after there was agreement during the meet and confer. Defendant shall now supplement the responses based on the definition of these terms reached in March.

Plaintiff's request for fee sanctions is GRANTED pursuant to CCP §2031.31(h). The court has reviewed the declaration of Patricia Kramer and finds the request for fees and costs to be eminently reasonable. The fee award is \$11,500, and Defendant shall pay costs in the amount of \$90.45.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/28/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0000712

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: EMELY SALDANA

vs.

DEFENDANT: THE BUNGALOW
KITCHEN SF, LLC ET AL

NATURE OF PROCEEDINGS: 1) MOTION – FAILURE TO FILE FINAL APPROVAL OF
CLASS ACTION AND PAGA SETTLEMENT

2) MOTION – OTHER: FINAL APPROVAL OF CLASS ACTION AND PAGA
SETTLEMENT

RULING

The class action and PAGA settlement is approved. The court will sign the order provided.

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